

SENATE BILL 2033

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 8 and Title 50, relative to employment-related mental health evaluations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 50, Chapter 1, Part 3, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Employee" means an individual who performs services for an employer for valuable consideration, and does not include a self-employed independent contractor; and

(2) "Employer" means an individual or entity that employs one (1) or more employees and includes this state and political subdivisions of this state.

(b) An employer that requires an employee or prospective employee to submit to a mental health evaluation as a condition of employment or prospective employment shall grant the employee or prospective employee reasonable access to the results of the evaluation, including any report from a mental health professional or other evaluator. The employer may require that such access be during normal business hours.

(c) An employee who is denied access to a mental health evaluation as provided in subsection (b) may bring a private cause of action against the employer for declaratory or injunctive relief. A court shall award to an employee who prevails in such action reasonable court costs and attorney fees.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.